Joint Standing Committee on Electoral Matters Inquiry into the 2025 federal election:
Voices of Bean

Summary

[redacted] was the [redacted] candidate for Bean at the 2025 election, coming within 351 votes of winning. The issues raised in this submission very likely altered the outcome of the election in Bean.

It's important to state that our interactions with the AEC throughout the nomination process, polling and scrutiny, were highly satisfactory and we hold the professionalism and independence of the AEC in the highest regard.

In regard to *all aspects of the conduct of the 2025 federal election,* three issues that arose are described:

- The AEC should be directed to ensure that voting centres are in 'neutral' locations.
- The AEC should be asked to tighten public advice about updating the electoral roll and should be resourced adequately for this important task.
- The APS should give balanced an fair advice to public servants well in advance of elections in order that they can exercise their democratic rights without a culture of fear.

About *the suitability of the current authorisation framework and requirements*, the promulgation of misleading electoral material is described. Truth in political advertising legislation is needed.

In regard to *the implementation and operation of the electoral reform passed by the 47th Parliament,* our objections to the these 'reforms' are described; they are designed to undermine democracy.

In regard to *the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate*, we recommend:

- that fixed three-year terms are implemented
- that the number of Senators for the ACT and NT be increased.

Tuggeranong Pre-Poll Voting Centre located beside [redacted] office

The Tuggeranong pre-poll voting centre is located in the Salvation Army church on the corner of Reed Street North and Anketell Street and is open for the full two weeks of pre-poll. In 2025, Tuggeranong PPVC was by far the largest voting centre for Bean, with 52% of pre-poll and 20% of all votes cast there.

For this centre, electors waiting to vote are directed to queue up along Anketell Street, directly past [redacted] office. This office is branded in [redacted] colours with an enormous photo of [redacted] face and his name in large lettering. This means every person who queues to vote at this location walks past, and may indeed spend some time in the queue, in front of a loudly branded office that conveys the [redacted].

Other candidates could not legally compete with the incumbent's signage as ACT law does not permit signage of this size on public land. We contacted the AEC prior to the start of pre-poll to request that the queue be formed on Reed Street, but this did not happen.

We suggest that the AEC be required to select a neutral location for polling centres, or at least that any branding favouring one candidate be obscured for the duration of use of that centre.

Maintenance of the electoral roll

In the House of Representatives, MPs represent the people living in their division, so it should only be the electors of that division who elect them. As people move house between divisions, the Electoral Act requires them to update the electoral roll with their new address one month after the move. The Australian Electoral Commission is responsible for maintenance of the electoral roll.

The importance of maintenance of the roll was highlighted in the division of Bean at the 2025 election. [redacted] candidate [redacted] narrowly lost (49.66% two-candidate preferred) against [redacted]. Votes cast inside the division boundaries favoured the independent (50.46% 2CP) but votes cast outside the division went against her (45.20% 2CP).

Three observations suggest that many of the people who voted outside Bean probably don't live within it. Firstly, a new [redacted] candidate relies on voter contact and advertising within the division in order to compete with the major parties and little of this campaign activity reaches into the neighbouring divisions, so awareness of the [redacted] candidate would be lower. Secondly, the votes cast outside the division were more similar to votes cast throughout the main adjoining division of Canberra (for instance the proportion voting for [redacted] was higher and for [redacted] was lower). Thirdly, the more distantly the vote was cast, the more the [redacted] vote was depressed (ordinary votes in nearby booths 47.41%, absent votes 44.80% and declaration pre-poll 42.83%). Together, these data indicate that the result inside the division was overturned by votes cast outside the division by people who mostly probably don't live within it.

The AEC website correctly states 'When you move house... you must update your enrolment details' and 'If you have moved, you are eligible to enrol at your new address if you have lived there for at least one month' but it does not mention that the Electoral Act requires this to happen within the next 21 days. People may easily think they can delay the update until the next election, when they might forget or not get around to it. The information provided by the AEC should be tightened to make elector obligations clear. The requirement to update the roll if you have moved was also missing from the AEC election guide distributed to households, and should be included.

The AEC website also states 'To help keep the roll as complete and correct as possible, we use information we receive from other government agencies, including electors' contact details.' This is to be commended, but may be quite an onerous task for the AEC. We recommend that the Committee considers whether the AEC is sufficiently resourced for this work and urge that it be so resourced.

Democratic rights of Australian Public Servants

The Public Service Commissioner and the Secretary of the Department of Prime Minister and Cabinet sent an open letter to all public servants on 28 March 2025 to remind them to 'remain professional, apolitical, impartial and ethical in the course of their duties'.

This advice, and it's timing, likely had a chilling effect on democratic engagement by public servants. Advice to public servants should be provided at least 6 months out from the latest date an election can be held, that they are entitled as private citizens to engage in political activity provided there is no direct conflict of interest with their regular work.

The Public Service Commissioner sent a more balanced and fair email to APS Agency Heads on 15 April, but this information should have gone directly to public servants well in advance of the election.

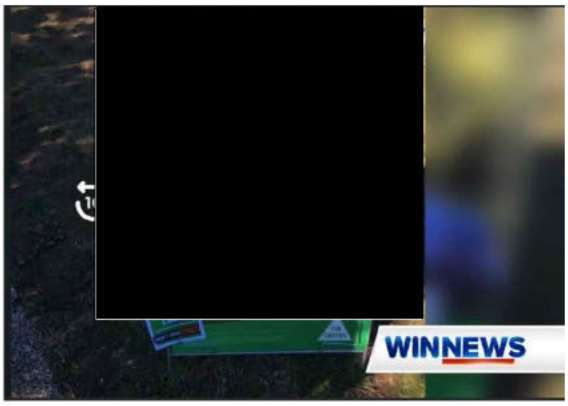
We recommend that fair and balanced advice is given to public servants at least six months in advance of federal elections ensuring that they can exercise their democratic rights without a culture of fear.

Misleading electoral material

During the recent federal election, [redacted] volunteers at multiple polling booths within the electorate of Bean distributed a green-coloured flyer ('the flyer') that closely resembled an communications from [redacted]. The flyer encouraged [redacted] supporters to preference [redacted] second, contrary to the official Greens how-to-vote card, which placed [redacted] third.

The flyer design, colour scheme, and absence of [redacted] branding appear deliberately calculated to mislead voters. The flyer did have [redacted] authorisation, but this 'fine print' was easily overlooked. In at least one instance, the flyer was physically attached to the [redacted] candidate's corflute signage, creating a false association between the flyer and the [redacted] campaign. This act is particularly concerning, because it suggests an intent to deceive voters by implying endorsement from the [redacted] candidate.

Several voters reported mistaking the flyer for an authentic [redacted] how-to-vote card. In some cases, [redacted] volunteers handed out the flyer alongside [redacted] volunteers at the same booth, potentially creating confusion. In other cases, where no [redacted] volunteers were present, voters may have reasonably assumed that [redacted] was distributing materials on behalf of both parties. In at least one case, the flyer was seen attached to a [redacted] sign. This raises serious concerns about the integrity of the electoral process, especially in a very close contest where preference flows were decisive. The distribution of such material undermines informed voting and exploits public trust in party communications.



It is essential that the parliament passes truth in political advertising laws to prevent practices such as this because they compromise the transparency and fairness of the democratic process. Voters rely on clear, accurate, and truthful information to make informed choices. Misleading materials erode public confidence and potentially distort electoral outcomes.

Electoral funding changes introduced in Feb 2025

The significant funding and disclosure reforms in the Electoral Legislation Amendment (Electoral Reform) Act 2025 Act will commence1 July 2026.

The changes are wide ranging and complex. They were negotiated between the major parties ([redacted] and rushed through the Parliament without consultation with the cross bench or other stakeholders. While some of the new rules are prima facie good, the incorporation of multiple loopholes which benefit the major parties and their big money donors mean the overall effect is to preserve the status quo (or improve access to funding) for the major parties while curtailing the funding available to minor parties and independents. The ulterior motivations, complexity and rushed drafting of the new legislation has made it difficult to comprehend and there is much uncertainty regarding its operation. Furthermore there are likely to be court challenges including under The Constitution.

Key Implications for independents include:

- The $800,000 expenditure cap will disadvantage independents competing against the national campaigns of the major parties.
- Loopholes will allow vastly greater fundraising and expenditure by the major parties, increasing the unevenness of the playing field.
- The complexity of the new rules will create an administrative burden.
- Allocation of additional “administrative” funding for incumbents will disadvantage new independent candidates.

- The cap on expenditure by third parties such as Climate 200 will limit funding for independents.

We object to this deliberate undermining of democracy by the major parties and urge the Committee to recommend that the changes be reviewed.

Fixed terms

Election campaigns are resource-intensive. Planning those resources (financial, logisitical and volunteer time) is complicated by not knowing the timing of the election. This was a considerable problem for our campaign. Allowing the incumbent government to set the date hands them a significant advantage against the other parties, and an even larger advantage against challenger candidates running for the first time. It is in the public interest for incumbency advantages to be removed and the system made more fair. We recommend that fixed terms are implemented.

Number of Senators for the ACT and NT

The Northern Territory and Australian Capital Territory are under-represented in the Senate and should have at least the baseline level of representation enjoyed by Tasmania. This would not increase the entitlement to number of members in the House or Representatives, but would allow for more diversity and effectiveness of representation from the Territories. The Northern Territory is very large and diverse, while ACT Senators also represent the people of Norfolk Island and Jervis Bay.

We recommend that the number of ACT and NT senators should be increased preferably to 6 and at least to 4.